

Smt. Runu vs Shubhasis on 27 May, 2024

Author: Pranay Verma

Bench: Pranay Verma

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IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
BEFORE
HON'BLE SHRI JUSTICE PRANAY VERMA
ON THE 27 th OF MAY, 2024
MISC. PETITION No. 2660 of 2024

BETWEEN: -

SMT. RUNU W/O SHRI SHUBHASIS, AGED ABOUT 33
YE A R S , OCCUPATION: PRIVATE JOB, R/O: 116-B,
VAIBHAV NAGAR, KANADIA ROAD, INDORE (MADHYA
PRADESH)

(SHRI ARPIT KUMAR OSWAL - ADVOCATE)

AND

SHUBHASIS S/O KSHRI BAIDHNATH DAS, AGED ABOUT
36 YEARS, OCCUPATION: PRIVATE JOB, R/O: 101,
SIDDHI COMPLEX, ANITA NEAR MOTORS, RIS
RASAYANI, DIST. RAIGARH (MAHARASHTRA)

This petition coming on for admission this day, the court
following:

ORDER

Learned counsel for the petitioner is heard on the question of admission.

2. By this petition preferred under Article 227 of the Constitution of India, the petitioner / wife has challenged the order dated 07.03.2024 passed in HMA No.9/2019 by the IIIrd Additional Principal Judge, Family Court, Indore whereby application preferred by her under Section 24 of the Hindu Marriage Act, 1955 has been rejected.

3. The petitioner has preferred a petition under Section 13 of the Hindu Marriage Act before the Family Court for grant of decree of divorce. In those proceedings, she preferred an application under Section 24 of the Hindu Marriage Act, 1955 claiming maintenance from the respondent / husband. It was submitted by her that she is having income of only Rs.35,000/- whereas the respondent is earning about Rs.2,50,000/- per month by way of salary and is also having several other incomes

hence ought to pay maintenance to her.

4. The Family court has recorded a finding to the effect that the petitioner is herself earning Rs.50,000/- per month and that the income of the respondent is Rs.1,80,000/- hence petitioner is not entitled for grant of any maintenance.

5. It is submitted by the learned counsel for the petitioner that merely because the petitioner is having income, her application for grant of maintenance could not have been outrightly rejected. The income of the respondent also ought to have been taken into consideration which is much more than what has been contended by him and accordingly appropriate amount of maintenance ought to have been awarded to her in accordance with life style of respondent which he was having in the matrimonial house. The income of the respondent has been illegally assessed by misreading of the documents available on record. Reliance has been placed by him on the decision of the Apex Court in the case of Rajnesh Vs. Neha and Ors. Cri.A No.730/2020 (Arising out of SLP (Crl.) No.9503/2018), Sunita Kachwaha and Ors. Vs. Anil Kachwaha AIR 2015 SC 554, M.P. Singh Bargoti Vs. State of M.P. & Anr. AIR 2015 SC 556, Chaturbhuj Vs. Sita Bai AIR 2008 SC 530 and Kapildeo Mandal & Ors. Vs. State of Bihar AIR 2008 SC 533.

6. I have considered the submissions of the learned counsel for the petitioner and have perused the record.

7. In the judgments relied upon by the learned counsel for the petitioner it has been held that the income of the wife cannot operate as a bar for awarding maintenance to her from her husband. The Court has to determine whether income of wife is sufficient to enable her to maintain herself in accordance with life style of her husband in the matrimonial house. Mere capacity of the wife to earn and she in fact earning a meagre amount would not disentitle her to claim maintenance and the issue has to be decided in accordance with life style of the parties.

8. Though it has been contended by the petitioner that the respondent is having much more income than what has been stated by him, but nothing has been brought on record in substantiation of the said fact. While it is stated that the respondent is having a flat in his name but there is nothing on record to show that he is deriving any income therefrom. Likewise, though he is having mutual funds in his name but the actual income therefrom has not been shown. The documents on record suggest that the respondent is having an income of Rs.1,80,000/- and in absence of any cogent material of him earning from other sources also the same has to be accepted. Thus, the contention of the petitioner that respondent is having much more income cannot be accepted.

9. The petitioner is herself earning Rs.50,000/- per month and is a resident of Indore. In my considered opinion, the same is a sufficient quantum for her to be able to maintain herself. Since the income of the respondent is around Rs.1,80,000/- per month, there is no necessity for awarding any amount of maintenance to the petitioner since she is already earning about Rs.50,000/- per month. It is also noted that though the divorce petition was preferred on 02.01.2019 but the application under Section 24 of the Hindu Marriage Act, 1955 was filed by the petitioner only on 16.03.2022 i.e. after a period of three years which shows that she is capable of and is maintaining herself and does

not require any further maintenance amount from the respondent. In such circumstances, the judgments relied upon by the learned counsel for the petitioner do not help him in any manner.

10. As a result of the aforesaid discussion, I do not find any merit in this petition which is accordingly dismissed.

(PRANAY VERMA) JUDGE Anushree